

Tentative Ruling

Case Name: *In the Matter of Jeffrey Scott Jolliff*

Case No.: 24PR196672

Hearing date, time, and department: August 14, 2025 at 10:00 a.m. in Department 2

INTRODUCTION

Michelle Pestana (“Pestana”), sister of Decedent Jeffrey Scott Jolliff (“Decedent”) initiated this case by filing a petition for letters of administration asserting that Decedent died intestate and that Pestana was his sole heir. Thereafter, Patricia LeBaron (“LeBaron”), Decedent’s roommate or long-time partner, filed a petition to probate a purported will of Decedent’s, which names her as executor. LeBaron also asserted that she was named trustee in a trust executed by Decedent. Pestana filed a petition to invalidate the trust, among other things. Decedent’s natural daughter, Britney Zurich (“Britney”)¹, filed separate petitions to invalidate the will and trust, neither of which name her as a beneficiary.

The court set the matter on the law and motion calendar for determination of Britney’s standing to pursue her petitions to invalidate the will and trust. In short, the parties’ dispute centers on whether an order terminating Decedent’s parental rights over Britney also terminated Britney’s right to inherit from Decedent. The court allowed briefing on the issue. Britney and LeBaron have submitted initial and responsive briefs.² Britney also filed a motion to set aside the order terminating parental rights. LeBaron has filed an opposition the Britney’s motion to set aside the order terminating parental rights.³

The court granted Britney’s ex parte application to allow her to view the contents of her confidential family court file. Thereafter, Britney filed a request for judicial notice of the entire family court file.

DISCUSSION

I. Requests for Judicial Notice

¹ Because certain individuals involved in this case share the same last name, or at least did at one point, the court will refer to them by their first names. No disrespect is intended.

² The court notes that, although Pestana originally asserted in her petition for letters of administration that Britney had been disinherited by the termination of Decedent’s parental rights, she has not filed a brief on this issue.

³ The court also granted LeBaron’s request to be named to be appointed special administrator of Decedent’s estate, which LeBaron contends gives her standing to oppose the motion to set aside.

Britney requests judicial notice of (1) a “Stipulation for Entry of Judgment and Judgment for Order” re parentage filed in the Santa Clara County Superior Court in docket DA032426, entitled *County of Santa Clara v. Jeff S. Jolliff*, and (2) an “Order Terminating Parental Rights of Father, Jeffrey Scott Jolliff and in the Sole and Exclusive Custody and Control of her Mother” filed in the Santa Clara County Superior Court in docket 2002-1-AD-018086, entitled *In the Matter of the Petition of LORRAINE ZURICH on behalf of BRITNEY LILLIAN JOLLIFF, a Minor, for Freedom From Parental Custody and Control of JEFFREY SCOTT JOLLIFF*. The court GRANTS the unopposed request for judicial notice pursuant to Evidence Code section 452, subdivision (d). The court also GRANTS LeBaron’s unopposed request for judicial notice of the order terminating parental rights under the same authority.

After receiving the order allowing her to view her adoption file, Britney filed a request for judicial notice of the entire family court file. The court GRANTS the unopposed request for judicial notice under Evidence Code section 452, subdivision (d).

II. Analysis

Britney asserts that her intestate succession rights remain intact on two main grounds. First, she contends that the order terminating parental rights did not sever her intestate succession rights as a matter of law because such orders do not impact the child’s right to inherit. Second, she asserts that the order terminating parental rights is void as against public policy because it was entered into pursuant to a stipulation between her mother, Lorraine McIvor, formerly known as Lorraine Zurich (“Lorraine”), and Decedent.

LeBaron contends that the case law and the California statutory scheme governing intestate succession and the rights of parents and children to inherit from each other support the conclusion that an order terminating parental rights has the effect of severing the child’s right to inherit from the parent pursuant to intestate succession.

Because the issue of Britney’s standing and the motion to set aside the order terminating parental rights are intertwined, they will be discussed together.

A. Standing and the Statutory Scheme Governing Inheritance by a Natural Child

“To contest a will before or after probate, the would-be contestant must be an ‘interested person.’ [Citation.]” (*Estate of Lind* (1989) 209 Cal.App.3d 1424, 1430.) “Subject to subdivision (b), ‘interested person’ includes any of the following: (1) An heir, devisee, child, spouse, creditor, beneficiary, and any other person having a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding.” (Prob. Code, §48, subd. (a).) Probate Code section 48, subdivision (b) provides, “The meaning of ‘interested person’ as it relates to particular persons may vary from time to time and shall be determined according to the particular purposes of, and matter involved in, any proceeding.” (An interested person must have “a property right in or claim against a trust estate or the estate of a decedent

which may be affected by the proceeding' ” to have standing. (See *Estate of Sobol* (2014) 225 Cal. App. 4th 771, 782.) One who would take by intestacy if a will were to be found invalid is an interested person. (*Estate of Lind, supra*, 209 Cal.App.3d at p. 1431.)

“Any part of the estate of a decedent not effectively disposed of by will passes to the decedent’s heirs as prescribed in this part.” (Prob. Code, § 6400.) If there is no surviving spouse of the decedent, as in this case, the decedent’s “issue” will take his intestate estate in equal shares. (Prob. Code, § 6402, subd. (a); see also Prob. Code, § 50 [“ ‘Issue’ of a person means all his or her lineal descendants of all generations, with the relationship of parent and child at each generation being determined by the definitions of child and parent.”].)

In this case, LeBaron contends that Decedent died with a will and trust in place. Britney asserts that the will and trust are invalid and, if they are invalidated, she would take by intestate succession. Thus, she asserts that she has standing as an intestate heir or child of Decedent’s and her property rights are affected by the will and trust. “ ‘Child’ means any individual entitled to take as a child under this code by intestate succession from the parent whose relationship is involved.” (Prob. Code, § 26.) “ ‘Heir’ means any person, including the surviving spouse, who is entitled to take property of the decedent by intestate succession under this code.” (Prob. Code, § 44.) Britney asserts that under the plain language of these statutes she is an intestate heir with standing to pursue her claims. LeBaron does not appear to dispute that Britney is a natural child of Decedent’s, who would have standing to bring her petitions if the order terminating Decedent’s parental rights did not cut off Britney’s right to inherit via intestate succession.

In asserting that Britney lacks standing, LeBaron relies in part on Probate Code section 6542, which provides, in part, “A parent does not inherit from or through a child on the basis of the parent and child relationship if any of the following apply . . . The parent’s parental rights were terminated and the parent-child relationship was not judicially reestablished . . .” (Prob. Code, § 6452, subd. (a)(1).) She contends that this means that, when parental rights have been terminated, neither the parent, nor the child have the right to inherit from the other. But, the plain language of the statute does not indicate that it works the other way. In other words, the statute does not expressly provide that a child may not inherit from a parent when the parent’s parental rights have been terminated.

Britney argues that because Probate Code section 6452, and indeed no Probate Code section, provides that a child loses the right to inherit from a parent when parental rights are terminated, a child may still inherit even if the parent’s rights have been terminated. In other words, the Legislature is aware of how to craft a statute that would make clear that a child may not inherit when parental rights have been terminated and the fact that it has not done so establishes that it did not intend to make such a law. (See, e.g., *State Building & Construction Trades Council of California v. Duncan* (2008) 162 Cal.App.4th 289, 324 [provision drafted by Legislature establishes that Legislature is aware of how to craft similar provision and the fact that it did not do so suggests that it did not intend to].)

LeBaron on the other hand, asserts that the Legislature is presumed to be aware of the case law in existence at the time it enacted legislation and in failure to expressly overturn it, the Legislature endorsed it. (See, e.g., *Estate of Franco* (2023) 87 Cal.App.5th 1270, 1280-1281 [Legislature is aware of court opinions in existence at the time legislation is enacted and failure to overturn that case law is indicative of an intent to leave it as it stands].)

The court agrees with Britney that Probate Code section 6452, by its plain terms, does not prohibit a child from inheriting from a parent when parental rights are terminated. However, it does not expressly provide that a child may inherit from a parent when parental rights have been terminated.

Britney also relies on Probate Code section 6453, which provides, “A natural parent and child relationship may be established pursuant to any other provisions of the Uniform Parentage Act, except that the relationship may not be established by an action under subdivision (c) of Section 7630 of the Family Code unless any of the following conditions exist: (1) A court order was entered during the parent’s lifetime declaring parentage. (2) Parentage is established by clear and convincing evidence that the parent has openly held out the child as that parent’s own. (3) It was impossible for the parent to hold out the child as that parent’s own and parentage is established by clear and convincing evidence, which may include genetic DNA evidence acquired during the parent’s lifetime.” (Prob. Code, § 6453, subd. (b).) Probate Code section 6450, provides, in pertinent part, Subject to the provisions of this chapter, a relationship of parent and child exists for the purpose of determining intestate succession by, through, or from a person in the following circumstances: (a) The relationship of parent and child exists between a person and the person’s natural parents, regardless of the marital status of the natural parents. . . .” (Prob. Code, § 6450, subd. (a).) Britney asserts that a judgment was entered into in her family law case in which the parties stipulated that Decedent was Britney’s father. (See Britney’s Request for Judicial Notice filed June 12, 2025, Ex. A.) But, after that judgment was entered, Decedent’s parental rights were terminated.

Finally, Britney argues that the only scenario in the statutory scheme wherein a natural child does not inherit from her birth parents is when the child has been adopted. (See Prob. Code, § 6451, subd. (a) [“An adoption severs the relationship of parent and child between an adopted person and a natural parent of the adopted person unless both of the following requirements are satisfied: [stating requirements]”].) Here, it is not disputed that Britney was not adopted. But, again, the statutory scheme does not address a situation wherein the child may inherit from a natural parent when that parent’s parental rights have been terminated.

“[I]ntestate succession is wholly statutory.” (*Estate of McDill* (1975) 14 Cal.3d 831, 840; see also *Estate of Leslie* (1984) 37 Cal.3d 186, 199 [“the right to succession is not an inherent or natural right, but purely a creature of statute”].) The court finds that the above provisions do not definitively establish whether Britney may inherit from Decedent via intestate succession because they do not address a situation in which a natural parent’s parental rights have been terminated. Accordingly, the court turns to the case law for guidance.

B. Case Law

Britney and LeBaron each cite cases that they contend support their relative positions as to the effect of the order terminating parental rights. Britney relies on *In re Jacqueline G.* (1985) 165 Cal.App.3d 582, 596 (*Jacqueline G.*), in which the Court of Appeal stated that a mother's "relinquishment of her minor daughter only terminated her rights and obligations as a natural parent. [Citation.] It did not extinguish the parent-child status or the minor's right to inherit through her mother. [Citation.]" Although it is one of very few cases discussing the issue before the court, *Jacqueline G.* does not strongly support the conclusion that an order terminating parental rights does not terminate the child's right to inherit from the parent. It does not provide significant discussion of the issue. For the proposition that relinquishment of a child did not extinguish the parent-child status, or the child's right to inherit, the *Jacqueline G.* court relied on Civil Code section 224m, which was repealed in 1991,⁴ and a 1947 Attorney General opinion interpreting the relinquishment statutes then in effect. (See *ibid.*, citing Civ. Code, § 224m and 10 Ops. Cal. Atty. Gen. 253, 255 (1947) [" '[The] apparent purpose of the Legislature in enacting [statutory provisions on relinquishment] was to facilitate adoption procedure and fix responsibility of the parties thereto, not to amend the laws of inheritance.' "] .) Notably, the order for termination of parental rights was issued in 2002, after Civil Code section 224m had been repealed.

Additionally, both the Family Code and the Probate Code now contain provisions not discussed in *Jacqueline G.* and not considered in the 1947 Attorney General opinion. Further, the court notes that, in *Jacqueline G.*, the Court of Appeal was contemplating an order of the trial court terminating a father's parental rights, not a question of standing under the Probate Code. Finally, at the time *Jacqueline G.* was decided, existing California Supreme Court case law, which was not addressed by the *Jacqueline G.* court, stated, "It is undeniable that grave consequences flow from the permanent severance of the parent-child relationship. These include important financial results attending the extinction of the parent's duty to support *and the mutual right to inherit.*" (*In re Angelia P.* (1981) 28 Cal.3d 908, 915 (*Angelia P.*)). In *Angelia P.*, the parental rights had been terminated pursuant to then-Civil Code section 232, the predecessor to Family Code section 7820. (See *ibid.*)

LeBaron relies on a more recent case, *Jackson v. Fitzgibbons* (2005) 127 Cal.App.4th 329 (*Jackson*).⁵ In *Jackson*, the natural daughter of the decedent attempted to bring, through her

⁴ Some of the substance of Civil Code section 224m is now contained in Family Code section 8700. (See *Tyler v. Children's Home Society* (1994) 29 Cal.App.4th 511, 528, fn. 12.) Family Code section 8700 itself does not contain any provision speaking to inheritance rights.

⁵ The court rejects LeBaron's argument that the Legislature necessarily considered *Jackson* in enacting Probate Code section 6452. It is clear that the Legislature, in enacting

guardian ad litem, a wrongful death action against the doctor she alleged caused the death of her mother. (*Id.* at p. 332.) The trial court granted summary judgment in favor of the doctor on the ground that the daughter lacked standing to sue pursuant to Code of Civil Procedure section 377.60 because the decedent mother's parental rights had been terminated pursuant to Welfare and Institutions Code section 366.26 before her death. (*Ibid.*) In upholding the trial court's order, the Court of Appeal explained, "An order terminating parental rights severs the parent-child relationship and extinguishes all rights and obligations between the child and his or her parents." (*Id.* at p. 334.) "An order terminating parental rights . . . represents the total and irrevocable severance of the bond between parent and child. [Citation.]" (*Jackson, supra*, 127 Cal.App.4th at p. 334, internal quotation marks omitted.) The court reasoned that standing under Code of Civil Procedure section 377.60, subdivision (a) is limited to certain individuals, including, as potentially relevant to the case before it, children of the decedent, however, because the parent-child bond had been severed, the court concluded that the daughter did not have standing. (*Id.* at p. 335.)

Although the *Jackson* court did not address standing under Probate Code section 48, LeBaron contends that the right to bring a wrongful death action is tied to intestate succession under Code of Civil Procedure section 377.60, subdivision (a). That subdivision provides, "The decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, *who would be entitled to the property of the decedent by intestate succession.*" (Code Civ. Proc., § 377.60, subd. (a), italics added.)

Britney argues that *Jackson* only addressed standing to assert a wrongful death claim and not the issue of whether a child may inherit from a parent when parental rights have been terminated. But, the *Jackson* court explicitly rejected the daughter's argument that she had standing to assert her claim pursuant to Probate Code sections 6450, 6451, and 6402 because those statutes do not purport to apply where there has been a total and irrevocable severance of the bond between parent and child. (*Jackson, supra*, 127 Cal.App.4th at p. 335.) The court explained that "[t]he purpose of Probate Code section 6450 is to provide that the marital status of the parents is not relevant in determining a child's right to intestate succession, eliminating the distinction between 'legitimate' and 'illegitimate' children. [Citation.] Probate Code section 6451, subdivision (a) provides the rules for intestate succession for persons who have been adopted, including persons whose parents have voluntarily relinquished them. [Citation.] While Probate Code section 6402 lists 'the issue of the decedent' among those who can inherit by

Probate Code section 6452, was responding to another case Estate of Shellenbarger (2008) 169 Cal.App.4th 894, which explicitly dealt with the issue of parents inheriting via their deceased children when they had no relationship with their children. (See, e.g., Assem. Floor Analysis, Conc. in Sen. Amends. to Assem. Bill No. 490 (2013–2014 Reg. Sess.) as amended May 23, 2013, p. 3.) Thus, the Legislature did not have cause to consider *Jackson*, which primarily dealt with standing for the purposes of a wrongful death claim.

intestate succession, [the daughter] no longer is considered the “issue” of [the decedent] as a result of the terminating order.” (Jackson, supra, 127 Cal.App.4th at pp. 335-336, fn. omitted and italics added.) Thus, *Jackson* also supports a finding that that an order terminating parental rights also severs the child’s right to inherit via intestate succession.⁶

Britney contends that the order terminating Decedent’s parental rights in this case was not made under Welfare and Institutions Code section 366.26; instead, she asserts, it was made pursuant to the parties’ stipulation. The order states “the parental rights of JEFFREY SCOTT JOLLIFF to BRITNEY LILLIAN JOLLIFF be terminated and that JEFFREY SCOTT JOLLIFF is released of his obligation to pay for the maintenance and support of BRITNEY LILLIAN JOLLIFF from this date.” It makes no mention of any particular statute, nor does it mention inheritance rights. That said, after reviewing the documents contained in the family court file, it appears that the family court appointed counsel under Family Code section 7860, which provides, in pertinent part, “At the beginning of the proceeding on a petition filed pursuant to this part, counsel shall be appointed as provided in this article.” The petition itself indicates that it was brought under Family Code section, 7820, which provides, “A proceeding may be brought under this part for the purpose of having a child under the age of 18 years declared free from the custody and control of either or both parents if the child comes within any of the descriptions set out in this chapter.” Thus, it appears that Decedent’s parental rights were terminated pursuant to Family Code section 7820,⁷ rather than pursuant to Welfare and Institutions Code section 366.26. But, Britney points to no reason why the effect of an order terminating parental rights under Family Code section 7820 would be different from the effect of a similar order under Welfare and Institutions Code section 366.26.

The court is bound by *Jackson* and its determination that a child is no longer issue of a decedent when parental rights have been terminated. (See *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455 [a lower court is without authority to rule in a way that is contrary to a higher court’s ruling].) Accordingly, the court finds that the order terminating parental rights had the effect of severing the parent child relationship between Britney and Decedent.

⁶ The court also notes that in *A.S. v. Miller* (2019) 34 Cal.App.5th 284, 298, a case not cited by either party, the court explained that the biological child of a decedent who was not recognized by her father and had no relationship to him prior to his death lacked standing to pursue a wrongful death claim pursuant to Welfare and Institutions Code section 366.26. The court reasoned that an interpretation of Welfare and Institutions Code section 366.26 that provided such a person with standing would mean that “a decedent’s biological child would have standing even if a court had terminated the decedent’s parental rights or even if the child had been adopted by another”, which would conflict with existing precedent. (*Ibid.*)

⁷ The court will find below that the order was also made pursuant to the parties’ stipulation. However, that issue is better addressed in the context of whether the order is void or voidable, rather than in the context of the effect of the order, assuming it is valid.

C. The Order Terminating Parental Rights Was in Error

Britney contends that even if the order terminating Decedent's parental rights would have the effect of disinherit her, the order is void as it was made in excess of the court's jurisdiction. She relies on case law indicating that a court may not terminate parental rights or eliminate the obligation to pay child support pursuant to a stipulation.

In *Kristine M. v. David P.* (2006) 135 Cal.App.4th 783, 791 (*Kristine M.*), on which Britney relies, the Court of Appeal explained, "Given the supremacy of these familial rights—of the child and of the parent—a decision to terminate parental rights is one of the gravest a court can make. Thus it is only under specified circumstances, and upon specific findings that include the interests of the child, that a court has authority to terminate parental rights. These circumstances are confined to special proceedings related to implementation of permanent plans in dependency cases (Welf. & Inst. Code, § 366.26), actions to declare a minor free from parental custody and control (Fam. Code, § 7800 et seq.), and adoptions (Fam. Code, §§ 7660 et seq., 8600 et seq.)." The court held that parents could not ask the trial court to terminate a father's parental rights pursuant to their stipulation as a matter of convenience to end the father's child support obligation because parents have no right to waive or limit by agreement a child's right to support. (*Id.* at p. 786, citing *K.M. v. E.G.* (2005) 37 Cal.4th 130, 144 and Fam. Code, § 7632 ["Regardless of its terms, an agreement between an alleged father or a presumed parent and the other parent or child does not bar an action under this chapter."].) Britney also relies on *In re Marriage of Goodarzirad* (1986) 185 Cal.App.3d 1020, 1030, wherein the Court of Appeal held that the trial court had acted in excess of its jurisdiction when it allowed the husband to stipulate that he would consent to a petition to free the child from his parental control under former Civil Code section 232.

In this case, Lorraine declares that the decision to terminate Decedent's parental rights was made solely to allow him to avoid his child support obligations and it was not intended to affect Britney's ability to inherit from Decedent. (Declaration of Lorraine McIvor Formerly Lorraine Zurich in Support of Brief re Standing of Britney Zurich ("Lorraine Decl."), p. 2:1-13.) Thus, she contends that the order in this case is void as was the order in *Kristine M.* and *Goodarzirad*. But, the petition to terminate parental rights indicates that it was made pursuant to Family Code section 7820. It lists as grounds for termination the stipulation and that "the minor child has been left in the custody and control of Petitioner [Lorraine] since June 8, 1994, and the father of said child has not communicated with the minor in excess of one year or made any provisions for her support except after enforcement by the Santa Clara County Department of Child Support Services." (See Britney's Request for Judicial Notice filed July 25, 2025.) The order itself recites that the court received and reviewed the stipulation. It then states, "IT IS HEREBY ORDERED AND DECREED that all of the allegations of the Petition on file herein are true and correct on the basis of clear and convincing evidence and that BRITNEY LILLIAN JOLLIFF, born on June 8, 1994, is free from the custody and control of her father, JEFFREY SCOTT JOLLIFF, and that hereafter BRITNEY LILLIAN JOLLIFF is in the sole and exclusive

custody of her mother, LORRAINE ZURICH.” (See Britney’s Request for Judicial Notice filed June 12, 2025, Ex. B.)

Building on what was stated in *Kristine M.*, as Britney contends, the bases for termination of parental rights pursuant to Family Code section 7820 include abandonment (Fam. Code, § 7822), neglect or cruelty (Fam. Code, § 7823), parent suffering from disability due to alcohol, controlled substances, or moral depravity (Fam. Code, § 7824), parent convicted of felony (Fam. Code, § 7825), parent declared developmentally disabled or mentally ill (Fam. Code 7826), and mentally disabled parent (Fam. Code, § 7827). (See Fam. Code, § 7820 “A proceeding may be brought under this part for the purpose of having a child under the age of 18 years declared free from the custody and control of either or both parents *if the child comes within any of the descriptions set out in this chapter.*”).) LeBaron asserts that the court did have a statutory basis for terminating Decedent’s parental rights, namely Family Code section 7822. The language in the petition stating that Decedent had left Britney in the care of Lorraine for a year and did not contact Britney supports a finding of abandonment under Family Code section 7822. (See Fam. Code, § 7822, subd. (a)(3) [“A proceeding under this part may be brought if any of the following occur: . . . [o]ne parent has left the child in the care and custody of the other parent for a period of one year without any provision for the child’s support, or without communication from the parent, with the intent on the part of the parent to abandon the child.”].) And the order recited that the court found the allegations in the petition true based on clear and convincing evidence.

In *In re Marriage of Jackson* (2006) 136 Cal.App.4th 980, 993, on which Britney also relies, the Court of Appeal upheld the trial court’s order vacating its order terminating parental rights based on the stipulation of the parents where, inter alia, the court failed to investigate into the circumstances of the children under Family Code section 7850, failed to appoint counsel for the minors, and failed to consider the long-term interest of the children. The trial court made the order vacating the order terminating parental rights and the Court of Appeal upheld it despite language in the challenged order stating “ ‘the Court finds that there is clear and convincing evidence to terminate [Deborah’s] parental rights pursuant to Family Code § 7822(b).’ ” (*Id.* at p. 985.)

Here, it is not clear that the court relied on any evidence other than the stipulation itself. Notably, although the order recites that “oral and documentary evidence” were adduced in support of the petition, no minute order is present with the documents provided to the court and it is not clear that evidence was presented aside from the stipulation. Notably, there is no evidence that the court ordered an investigation into the circumstances of the child as required by Family Code section 7850 nor considered the long term effect of the termination of parental rights on Britney. Although Britney was appointed counsel to protect her rights during the termination proceedings, Lorraine declares that “Britney’s rights or any entitlement to inheritance were not considered, addressed, or included in the decision to terminate [Decedent’s] parental rights.” (Lorraine Decl., p. 2:10-11.) Accordingly, the court finds that the order was based on the stipulation and it was, therefore, in error based on the authorities discussed above.

LeBaron maintains that the order is not void and remains in effect because neither Britney nor Lorraine sought to vacate it. She argues that the cases Britney relies on are distinguishable because, in those cases, the minor sought to challenge the orders made in those cases. She further asserts that Britney may not now challenge the order terminating parental rights as void because the error was not jurisdictional. (See *Estate of Buck* (1994) 29 Cal.App.4th 1846, 1854 [“A litigant may collaterally attack a final judgment for lack of personal or subject matter jurisdiction, or for granting relief that the court had no power to grant, but may not collaterally attack a final judgment for nonjurisdictional errors. [Citations.]”].)

As to the latter contention, Britney has now filed a motion to set aside the order terminating parental rights under Code of Civil Procedure section 473, subdivision (d).⁸ In her opposition to the motion to set aside, LeBaron contends this court is not the proper court in which to seek to set aside the order. While it was originally the family court that made the challenged order, the judge who presided over the petition is no longer with the court. Additionally, adoption matters, which the family court action was deemed to be at the time, are now heard in the probate court. Finally, Britney has provided evidence, in the form of the declaration of her counsel’s paralegal, that the clerk of the court would not allow her to file the motion under the original case docket and informed her that she should file the motion in the instant case. (See Declaration of Christina M. Sambrano in Support of Motion to Set Aside, p. 2:5-15.) Accordingly, the court will hear the motion to set aside in this department.

LeBaron is correct in her assessment of the procedural posture of some of the cases Britney relies on. In *Goodarzirad*, the Court of Appeal voided the judgment, which was based on the improper stipulation, on direct appeal from the denial of a motion to vacate judgment. (*Goodarzirad*, *supra*, 185 Cal.App.3d at p. 1024.) The court held that accepting the stipulation was in excess of the court’s jurisdiction and, therefore, the father of the child could attack the judgment despite consenting to a petition to free the child from his parental control. (*Id.* at p. 1027.) Similarly, in *Kristine M.*, the judgment was voided in the context of a direct appeal by the minor. (*Kristine M.*, *supra*, 135 Cal.App.4th at p. 786.) Thus, while these cases might allow Britney to overcome the fact that her counsel agreed to the termination of parental rights via stipulation, they do not overcome the fact that the judgment in her family law case is long final.

Britney asserts that “[a] void judgment can be attacked at any time by a motion under Code of Civil Procedure section 473, subdivision (d), or by a collateral action.” (*Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 830, fn. omitted.) “A judgment or order is void when there is an absence of fundamental jurisdiction. However, an act in excess of jurisdiction simply renders an order of judgment voidable. Lack of jurisdiction in its most fundamental or strict sense means an entire absence of ... authority over the subject matter or the parties. ...

⁸ Code of Civil Procedure section 473, subdivision (d) provides, “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

[Citation.] In contrast, a court acts in excess of jurisdiction in the broader sense ‘where, though the court has jurisdiction over the subject matter and the parties in the fundamental sense, it has no jurisdiction’ (or power) to act except in a particular manner, or to give certain kinds of relief, or to act without the occurrence of certain procedural prerequisites. [Citation.] Action in excess of jurisdiction by a court that has jurisdiction in the fundamental sense ... is not void, but only voidable. [Citations.]” (*Schrage v. Schrage* (2021) 69 Cal.App.5th 126, 138-139, internal quotation marks omitted.) “A judgment or order that is not void but ‘merely’ voidable, however, is generally not subject to collateral attack. (*Id.* at p. 138.) “Errors which are merely in excess of jurisdiction should be challenged directly, for example by motion to vacate the judgment, or on appeal, and are generally not subject to collateral attack once the judgment is final unless ‘unusual circumstances were present which prevented an earlier and more appropriate attack.’ [Citations.]” (*People v. American Contractors Indemnity Co.* (2004) 33 Cal.4th 653, 661.)

The court also notes that Family Code section 7894, subdivisions (a) and (b) provide,

(a) An order and judgment of the court declaring a child free from the custody and control of a parent or parents under this part is conclusive and binding upon the child, upon the parent or parents, and upon all other persons who have been served with citations by publication or otherwise as provided in this part.

(b) *After making the order and judgment, the court has no power to set aside, change, or modify it.*

(Italics added; see also *Neumann v. Melgar* (2004) 121 Cal.App.4th 152, 166 [matters pertaining to the custody of children should be resolved with expediency and finality].)

However, in *In re Marriage of Jackson, supra*, 136 Cal.App.4th 980, 986, the order vacating the order terminating parental rights was made approximately two years after the original order had been entered on motion of the mother whose rights had been terminated. Nonetheless the Court of Appeal held that the order could be vacated at that time. The Court of Appeal explained

If the trial court has subject matter jurisdiction to hear or determine a case and personal jurisdiction over the parties, an order or judgment rendered in excess of the court's jurisdiction, such as by its failure to follow fundamental procedures prescribed by statute, remains valid but voidable [Citations.] A stipulated judgment or other order in excess of the court's jurisdiction may not be collaterally attacked absent unusual circumstances or compelling policy considerations. [Citations.] Thus, appellate courts have repeatedly allowed acts in excess of jurisdiction to stand when the acts were beneficial to all parties and did not violate public policy [citations] or when allowing objection would countenance a wholly unacceptable trifling with the courts. [Citations.] On the other hand, appellate courts have voided acts in excess of jurisdiction when the irregularity was too great or when the act violated a comprehensive statutory

scheme or offended public policy. (*Goodarzirad, supra*, 185 Cal. App. 3d at pp. 1024-1027 [stipulation of parties to deprive court of authority to modify child custody and visitation orders in dissolution proceeding]; [additional citations].) Whether the voidable order is enforced depends, in large part, on the degree of the procedural irregularity and whether the court's act violated a comprehensive statutory scheme or offended public policy. [Citation.]

(*In re Marriage of Jackson, supra*, 136 Cal.App.4th at pp. 988-989.) The Court of Appeal found that the order terminating parental rights “exceeded the trial court’s jurisdiction and contravenes ‘the public policy favoring that a child has two parents rather than one.’ [Citation.]” (*Id.* at p. 989.) A footnote in *In re Marriage of Jackson* makes clear that the Court of Appeal was aware of Family Code section 7894, yet it concluded that the order setting aside the order terminating parental rights was valid. (See *id.* at p. 989, fn. 7.) The court relied on, among other authorities, Kristine M. and Goodarzirad, in concluding that public policy supports upholding the parent-child relationship as a source of emotional and financial support and that the court cannot cast aside its obligation to consider the best interest of the child by accepting the parents’ stipulation in lieu of making findings regarding what is best for the child. (*Id.* at pp. 989-991.)

Here, the instant case is distinguishable from *In re Marriage of Jackson* because the considerations in that case regarding supporting the children are not present. Britney is now an adult and the court could not order Decedent to pay child support. (See Fam. Code, § 4053 [generally stating parents’ obligation to support “minor”]; Fam. Code, § 6500 [“A minor is an individual who is under 18 years of age.”].)⁹ Because Decedent is deceased, he can no longer provide emotional support. The only consideration before this court at this time is Britney’s potential to inherit from her biological father and, as Britney is an adult, this consideration is less relevant as, presumably, she is able to support herself. The Court of Appeal in *In re Marriage of Jackson* was not faced with a motion to set aside an order terminating parental rights made decades previously after the children at issue in that case had reached the age of majority. (See also, *Goodarzirad, supra*, 185 Cal.App.3d at p. 1027 [reasoning that family court presiding over divorce had continuing jurisdiction to make custody and support orders for minor child].)

In *Estate of Hampton* (1942) 55 Cal.App.2d 543, the Court of Appeal held that a will contestant could collaterally attack an adoption decree entered when she was four years old, decades previously, because it interfered with her right to inherit and because she did not have notice of the adoption proceedings, nor did her birth mother. (*Id.* at p. 568.) Britney contends that she should be allowed to attack the judgment terminating parental rights now, some 23 years later, because she was unaware of the judgment previously. (See Declaration of Britney Zurich in Support of Motion to Set Aside, p. 2:1-5.) But, here, Britney had counsel at the time the order terminating parental rights was made and her mother, who had sole custody of her as a child, also knew of the order. Additionally, the *Estate of Hampton* court concluded that the adoption

⁹ Britney does not assert that any exceptions to the general rule that support obligations terminate upon the age of majority apply in this case.

order in that case was void on its face for lack of jurisdiction due to lack of notice to the birth mother. (*Estate of Hampton, supra*, 55 Cal.App.2d at p. 568.)

The court finds that the order terminating parental rights may not be challenged by Britney where she was appointed counsel in connection with those proceedings; where her mother, who received sole custody of Britney during those proceedings, was aware of those proceedings; and where Britney has reached the age of majority. The motion to set aside is DENIED.

CONCLUSION

The motion to set aside is DENIED. The court finds that Britney lacks standing to pursue her petitions to invalidate the will and trust. Accordingly, the petitions filed December 3, 2024, and April 23, 2025, are ordered DISMISSED.